

CONTRACT OF EMPLOYMENT

Senior Associate — Corporate & Commercial Practice Group

Ref: VA/HR/2024/SA/018 | Date: 15 January 2024

THIS CONTRACT OF EMPLOYMENT is entered into as of 15 January 2024 between:

Vandermeer & Associates NV, a law firm incorporated under the laws of the Netherlands, having its principal place of business at Herengracht 182, 1016 BR Amsterdam (**“the Firm”**); and

and

Dr. Isabelle Fontaine, residing at Keizersgracht 44, 1015 CT Amsterdam (**“the Employee”**).

1. APPOINTMENT AND DUTIES

- 1.1 The Firm appoints the Employee as **Senior Associate** in the Corporate & Commercial Practice Group, commencing on 1 February 2024 (**“Commencement Date”**).
- 1.2 The Employee shall perform such duties as are reasonably assigned by the Managing Partner or relevant Practice Group Head, including advising clients on mergers and acquisitions, commercial contracts, and corporate restructurings.
- 1.3 The Employee shall devote the whole of their working time, attention and abilities to the business of the Firm during normal working hours.

2. REMUNERATION

- 2.1 The Firm shall pay the Employee a gross annual salary of **EUR 128,000**, payable in equal monthly instalments on the last Business Day of each month.
- 2.2 The Employee shall be eligible for an annual discretionary performance bonus of up to 25% of base salary, subject to the Firm's bonus policy in force from time to time.
- 2.3 The Employee's salary shall be reviewed annually with effect from 1 January of each year. The Firm is under no obligation to award any increase.

3. NOTICE PERIODS AND TERMINATION

- 3.1 **Notice by the Employee.** The Employee may terminate this Contract by giving the Firm not less than **three (3) months'** written notice.
- 3.2 **Notice by the Firm.** The Firm may terminate this Contract by giving written notice as follows:
 - (a) during the first year of employment: one (1) month's notice;
 - (b) from year two onwards: one (1) additional week per completed year of service, up to a maximum of thirteen (13) weeks.

- 3.3 **Summary Dismissal.** The Firm may terminate this Contract with immediate effect, without notice or payment in lieu, in the event of gross misconduct, dishonesty, serious breach of professional duties, or conduct likely to bring the Firm into disrepute.
- 3.4 **Garden Leave.** During any notice period, the Firm may require the Employee to remain away from the Firm's premises and refrain from performing any duties ("**Garden Leave**"). During Garden Leave, salary and benefits shall continue.

4. RESTRICTIVE COVENANTS

4.1 For a period of **twelve (12) months** following the Termination Date, the Employee shall not, without the Firm's prior written consent:

- (a) solicit or approach any client of the Firm with whom the Employee had material contact during the final 12 months of employment;
- (b) solicit, induce or attempt to induce any employee or partner of the Firm to leave their employment; or
- (c) act in a legal capacity for any direct competitor of the Firm operating in the Netherlands and Belgium.

4.2 The Employee acknowledges that each sub-clause constitutes an independent restriction and that the restrictions are reasonable and necessary to protect the Firm's legitimate business interests.

5. CONFIDENTIALITY AND INTELLECTUAL PROPERTY

5.1 The Employee shall maintain strict confidentiality of all client information, work product, business strategies and other confidential information relating to the Firm or its clients. This obligation continues without limitation after termination of employment.

5.2 All Intellectual Property Rights created by the Employee in the course of employment shall vest in and be the absolute property of the Firm.

6. LIABILITY

6.1 The Employee shall exercise all reasonable care and professional skill in performing their duties. Personal liability to the Firm for losses arising from negligence shall be limited to the extent of their direct culpability.

6.2 The Employee shall be covered by the Firm's professional indemnity insurance during the course of employment, subject to the policy terms.

7. GOVERNING LAW

7.1 This Contract shall be governed by the laws of the Netherlands. Disputes shall be submitted to the competent courts of Amsterdam.

IN WITNESS WHEREOF, the parties have signed this Contract on the date first above written.

**For and on behalf of VANDERMEER &
ASSOCIATES NV**

Authorised Signatory

Name: _____
Title: _____
Date: _____

DR. ISABELLE FONTAINE

Authorised Signatory

Name: _____
Title: _____
Date: _____